



CHAPTER lxxii.

An Act to confirm a Provisional Order under the Land Drainage Acts 1861 and 1918 amending the Land Drainage (Ouse) Provisional Order Confirmation Act 1920 and the Order thereby confirmed. A.D. 1925.
[31st July 1925.]

WHEREAS the Minister of Agriculture and Fisheries made the Provisional Order set forth in the schedule hereto under the provisions of the Land Drainage Acts 1861 and 1918 : 8 & 9 Geo. 5.
c. 17.

And whereas the Minister has determined to submit the said Order to Parliament for confirmation and accordingly it is requisite that the said Order should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order as set out in the schedule hereto shall be and the same is hereby confirmed and all the provisions thereof shall have full validity and force. Order in
schedule
confirmed.

2. This Act may be cited as the Land Drainage (Ouse) Provisional Order Confirmation Act 1925. Short title.

[Ch. lxxii.] *Land Drainage (Ouse)* [15 & 16 GEO. 5.]
Provisional Order Confirmation Act, 1925.

A.D. 1925.

SCHEDULE.

LAND DRAINAGE ACTS 1861 AND 1918.

Land Drainage (Ouse) Provisional Order.

WHEREAS the Ouse Drainage District was constituted by a Provisional Order made by the Minister of Agriculture and Fisheries (hereinafter referred to as "the Minister") in pursuance of the Land Drainage Act 1918 and confirmed by the Land Drainage (Ouse) Provisional Order Confirmation Act 1920 which Order and Act are hereinafter referred to as "the principal Order" and "the principal Act":

And whereas a petition has been presented by the Ouse Drainage Board to the Minister in accordance with the provisions of the Land Drainage Act 1918 praying that the provisions of the principal Act may be altered and supplemented in such respects as are indicated in the schedule to the petition so as to enable the area for the benefit of which drainage works are authorised by the principal Act to be drained effectively.

Now therefore the Minister in pursuance of the powers vested in him by the Land Drainage Acts 1861 and 1918 and of every other power enabling him in this behalf and for the purpose of carrying the said petition into effect hereby orders as follows:—

Suspension
of rating
in certain
parts of the
district.

1. No rate which is made under the principal Act or the principal Order after the commencement of this Order and before the first day of January nineteen hundred and twenty-seven (which period is herein referred to as "the suspensory period") and no rate which is made after the expiration of the suspensory period so far as the same is made for defraying the expenses of the Drainage Board in respect of works executed during the suspensory period shall except as hereinafter provided be levied on lands in Area A or in Sub-Areas D² D³ D⁴ or G² or in such part of Sub-Area K² as drains into the River Nar at or above Narborough mill and weir and this provision shall apply to rates for discharge of administrative and general expenses incurred by the Drainage Board during the suspensory period as well as rates for defraying expenses in respect of works.

[15 & 16 GEO. 5.] *Land Drainage (Ouse)* [Ch. lxxii.]
Provisional Order Confirmation Act, 1925.

2. During the suspensory period no works shall be executed by the Drainage Board under the principal Act or the principal Order—

A.D. 1925.

—
Special provisions as to works during suspensory period in certain parts of the district.

- (a) in Area A except with the consent of a sub-committee of the Board consisting of the members elected for sub-areas of Area A; or
- (b) in Sub-Areas D² D³ D⁴ or G² except with the consent of the members or member elected for such sub-areas respectively; or
- (c) in the part of Sub-Area K² referred to in the preceding section without the consent of the two members elected for Sub-Areas K¹ K² and K³:

Provided that if any works shall be so executed with the consent hereby required the expenses incurred by the Drainage Board in relation to those works including any administrative and general expenses allocated thereto under the principal Order shall be defrayed out of rates levied as the case may be on Area A Sub-Area D² Sub-Area D³ Sub-Area D⁴ Sub-Area G² or the part of Sub-Area K² hereinbefore described.

3. Expressions in this Order have the same meaning as in Definitions the principal Order.

4. This Order shall come into operation on the date on which it is confirmed by the Minister or if submitted to Parliament for confirmation then on the date of such confirmation.

Commence-
ment.

In witness whereof the Official Seal of the Minister of Agriculture and Fisheries is hereunto affixed the twenty-first day of May nineteen hundred and twenty-five.

(L.S.)

A. T. A. DOBSON
Assistant Secretary.

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